

Quick Built Systems Pty Ltd — Terms and Conditions of Trade

April 2026 Edition

1. Definitions

In these Terms, unless the context requires otherwise: ACL means the Australian Consumer Law set out in Schedule 2 of the Competition and Consumer Act 2010 (Cth). Customer means the person or entity purchasing the Goods or Services from the Company. Goods means any goods supplied by the Company, including insulated panels, kit home systems, components and accessories. Services means any services supplied by the Company, including design assistance, estimating, delivery and related services. Products means the Goods and any associated Services. Warranty means the document titled QBS Ten (10) Year Limited Warranty, as amended from time to time. Storage, Handling and Installation Requirements means the document titled STORAGE, HANDLING AND INSTALLATION REQUIREMENTS, as amended from time to time.

2. Application of Terms

2.1 These Terms apply to all quotations and offers made by the Company and all orders accepted by the Company. 2.2 By placing an order, the Customer is deemed to have accepted these Terms. 2.3 These Terms prevail over any inconsistent terms proposed by the Customer unless expressly agreed in writing by an authorised officer of the Company. 2.4 If there is any inconsistency between these Terms and any quotation, drawing, specification, plan, correspondence or other document (including any figure stated on the account application form), these Terms prevail unless the Company expressly states otherwise in writing.

3. Quotations, Price and GST

3.1 Quotations are valid for 30 days unless otherwise stated and may be withdrawn or varied prior to acceptance. 3.2 The price for the Goods and Services will be the price current at the time of order or supply unless otherwise agreed in writing. 3.3 All prices are exclusive of GST and any other government imposts. 3.4 The Company may vary prices to reflect changes in costs, taxes, duties, freight or other charges incurred between quotation and supply. 3.5 The Company may adjust prices where supplier pricing, regulatory requirements, engineering standards or material specifications change.

4. Orders, Variations and Cancellations

4.1 The Company may accept or reject any order at its discretion. 4.2 Once accepted, an order may not be cancelled, varied or suspended without the Company's prior written consent. 4.3 If the Company agrees to a cancellation, variation or suspension, the Customer must pay all associated costs, including manufacturing, handling, administration, storage, freight and restocking costs. 4.4 The Customer must accept delivery of all Goods already manufactured, procured or in transit. 4.5 The Company may vary specifications where required due to engineering, compliance, supplier availability, manufacturing constraints or regulatory changes. The Customer must accept equivalent or superior substitutions.

5. Payment

5.1 Unless the Customer has an approved credit account, payment in full is required before delivery or collection. 5.2 Customers with an approved credit account must pay all invoices by the last working day of the month following the month of invoice. 5.3 Discounted pricing is conditional upon timely payment. If payment is late, the full list price applies. 5.4 The Customer must not withhold, deduct, set off or retain any amount owing to the Company. 5.5 If the Customer fails to pay any amount by the due date: (a) interest accrues on the overdue amount at 3% per annum above the Westpac Overdraft Business Rate, calculated daily from the due date until payment in full; and (b) the Customer must pay all costs incurred by the Company in recovering overdue amounts, including legal costs on a solicitor-and-own-client basis and debt collection fees. 5.6 A certificate signed by a responsible officer of the Company stating the amount due is prima facie evidence of that amount. 5.7 The Company may apply any payment received from the Customer towards any outstanding amount in any order it determines.

6. Credit, Default and Termination

6.1 The grant of credit is at the Company's absolute discretion and may be varied, suspended or withdrawn at any time. 6.2 If the Customer is or may be unable to meet its obligations, or if any payment is in default, the Company may: (a) require immediate payment of all amounts whether or not then due; (b) suspend or cancel any existing order or delivery; (c) refuse to accept further orders; and (d) enforce any security interests or other rights under these Terms or at law. 6.3 The Company may request updated financial information from the Customer at any time as a condition of continuing to supply Goods or Services.

7. Delivery, Lead Times and Risk

7.1 Delivery is to the site or address nominated by the Customer unless otherwise agreed in writing. Risk in the Goods passes to the Customer upon delivery to the site, the Customer's carrier, or upon loading for collection. 7.2 Unloading is the Customer's responsibility. The Company is not liable for any loss or damage arising from unloading. 7.3 If the delivery site is unattended, inaccessible or unsafe, the Goods may be unloaded at kerbside or another reasonable location, and such unloading constitutes due delivery. 7.4 A delivery docket or manifest signed by the Customer, its representative, the driver or cartage contractor is conclusive evidence of delivery. 7.5 Additional charges may apply for delays, difficult access, special handling or Goods exceeding specified lengths. 7.6 If delivery of manufactured Goods is deferred at the Customer's request or due to Customer default, storage charges apply at 0.5% per week of invoice value. 7.7 Delivery dates are estimates only. The Company is not liable for delays caused by supply chain constraints, transport issues, weather, industrial action, regulatory changes, engineering requirements or any cause beyond its reasonable control.

8. Storage, Handling, Installation and Engineering Responsibility

8.1 The Customer must store, handle and install the Goods strictly in accordance with (a) the Storage, Handling and Installation Requirements; (b) any written instructions or technical documents provided by the Company; and (c) all applicable laws, standards and regulations. 8.2 The Customer is responsible for selecting appropriate Products and ensuring compliance with all statutory and regulatory requirements. 8.3 The Customer must engage suitably qualified installers, builders and tradespersons. 8.4 The Company does not provide engineering certification, structural design or site-specific compliance assessments unless expressly stated in writing. 8.5 Non-compliance with this clause may void or limit the Warranty.

9. Title and Security (PPSA and Caveat)

9.1 Legal and equitable title to the Goods remains with the Company until the Company has received payment in full of all amounts owing. 9.2 Until title passes, the Customer holds the Goods as fiduciary bailee and must store them separately so they are clearly identifiable as the Company's property. 9.3 The Customer must not encumber, dispose of or deal with the Goods except in the ordinary course of business. 9.4 The Company has a security interest under the PPSA in the Goods and their proceeds. 9.5 The Customer must do all things required to ensure the Company's security interest is perfected and has priority. 9.6 The Customer waives its right to receive notices under section 157 of the PPSA. 9.7 As continuing security, the Customer charges all present and future rights, title and interest in any real property it owns. The Company may lodge a caveat if the Customer defaults. 9.8 The Customer must maintain the Goods in a manner that ensures they remain identifiable as the Company's property until paid for in full.

10. Inspection, Claims and Returns

10.1 The Customer must inspect the Goods immediately upon delivery. 10.2 Claims for non-delivery or delayed delivery must be notified within three (3) business days of the scheduled delivery date. 10.3 Claims for short delivery, incorrect Goods or visible damage must be notified within eight (8) hours of delivery, with details recorded on the delivery docket wherever possible. 10.4 The Customer must not cut, modify, fix, install or otherwise use any Goods alleged to be damaged, defective, short supplied or incorrect. 10.5 If the Customer or its contractor cuts, modifies, fixes, installs or applies finishes to the Goods, the Goods are deemed accepted. 10.6 Goods must not be returned without the Company's prior written approval and must comply with the Company's return procedures.

11. Warranties and Australian Consumer Law

11.1 The Warranty applies to Goods manufactured by the Company and forms part of these Terms. 11.2 The Warranty is conditional upon strict compliance with the Storage, Handling and Installation Requirements and all other applicable instructions. 11.3 Where Goods or components are not manufactured by the Company, the Company passes on the benefit of any transferable manufacturer warranty. 11.4 ACL Notice: Our goods come with guarantees that cannot be excluded under the Australian Consumer Law. You are entitled to a replacement or refund for a major failure and compensation for reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if they fail to be of acceptable quality and the failure does not amount to a major failure. 11.5 Any claim under the Warranty must be made strictly in accordance with the Warranty's claim procedure. 11.6 The Warranty may be void or limited to the extent that non-compliance with installation, handling or storage requirements caused or contributed to the defect.

12. Limitation of Liability and Indemnity

12.1 To the fullest extent permitted by law, all conditions, warranties, guarantees and representations not expressly set out in these Terms or required by the ACL are excluded. 12.2 The Company is not liable for indirect, special or consequential loss, including loss of profit, revenue, opportunity, production, or costs of removal, re-installation, access, delay or disruption. 12.3 The Company's liability for Goods is limited (at its option) to repair, replacement, supply of equivalent goods, or payment of the cost of doing so. Liability for Services is limited to resupply or payment of the cost of resupply. 12.4 The Customer acknowledges it has not relied on any representation, advice, estimate, design assistance or recommendation not expressly included in these Terms. 12.5 The Customer indemnifies the Company against all claims, loss, damage, liability, costs and expenses arising from (a) any breach of these Terms; (b) negligence or wrongful act of the Customer or its contractors; (c) use, storage, handling, installation or modification of the Goods; and (d) any third-party claim relating to the Goods or Services to the extent caused by the Customer.

13. Intellectual Property

13.1 All intellectual property rights in the Goods, designs, drawings, specifications, documentation, branding and other materials remain the exclusive property of the Company. 13.2 The Customer must not use, copy, reproduce or disclose such intellectual property except as necessary for proper installation and use of the Goods. 13.3 All engineering documents, structural details, fixing schedules, methodologies and system information are subject to the confidentiality and use restrictions set out in Clause 14.

14. Engineering, System IP and Confidentiality

14.1 All engineering documents, structural details, drawings, specifications, fixing schedules, methodologies and system information provided by the Company remain the exclusive intellectual property of the Company. 14.2 The Customer receives a limited, non-transferable right to use such information solely for the construction of the nominated project at the nominated site. 14.3 The Customer must not disclose, share, distribute or provide any engineering or system details to any third party except (a) the project certifier; (b) the project engineer; (c) the builder engaged to construct the project using the Company's system; and (d) relevant authorities requiring the information for statutory approval. 14.4 The Customer must not (a) provide engineering or system details for the purpose of obtaining alternative pricing, quotations or construction services; (b) use engineering or system details for competitive tendering; (c) reproduce, adapt, reverse-engineer or replicate the Company's system; or (d) use engineering or system details for any project other than the nominated project. 14.5 If the Customer does not proceed with the Company, all engineering and system information must be returned or destroyed immediately upon request. 14.6 The Company may seek injunctive relief, damages and recovery of legal costs for any breach of this clause.

15. Privacy

15.1 The Customer consents to the Company collecting, using and disclosing personal and credit information in accordance with applicable privacy laws and the Company's privacy policy. 15.2 The Customer authorises the Company to obtain credit reports and exchange information with credit reporting bodies and other credit providers for credit assessment and account management.

16. Force Majeure

16.1 The Company is not liable for delay or failure to perform its obligations due to events beyond its reasonable control, including natural disasters, industrial action, equipment breakdown, shortages, transport issues or government restrictions. 16.2 Obligations are suspended for the duration of the event.

17. Dispute Resolution

17.1 If a dispute arises, the parties must first attempt to resolve it through good-faith negotiation. 17.2 If unresolved after 14 days, the parties must participate in mediation administered by an agreed mediator before commencing litigation, unless urgent injunctive relief is required.

18. Governing Law

18.1 These Terms are governed by the laws of New South Wales. 18.2 The parties submit to the non-exclusive jurisdiction of the courts of New South Wales.